

## Rewati Lal v. State of U.P. — recovery citation; speaking order; s.127

High Court of Judicature at Allahabad · Division Bench · 10 January 2020 · WRIT - C No. 749 of 2020 · **Writ disposed of; petitioner to appear before Executive Engineer with objections; speaking final order; recovery stayed; s.127 if aggrieved.**

### HEADNOTE

The Allahabad High Court disposed of a writ challenging a recovery citation without deciding the merits. It directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for seven weeks or until disposal of the objection, and left any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003.

### FACTUAL SUMMARY

Rewati Lal filed a writ in the Allahabad High Court seeking certiorari to quash recovery proceedings pursuant to a recovery citation dated 29 November 2019 issued by respondent no. 3. Counsel submitted that the electricity department was taking coercive action without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. The Court heard counsel for the petitioner and for the electricity department and perused the record.

### HOLDING-UNITS

#### HOLDING-UNIT · EA2003::127

relegation after speaking final order

#### HOLDING

A writ challenging a recovery citation on the ground of coercive action without hearing and without following the U.P. Electricity Supply Code, 2005, was disposed of without a merits determination. The petitioner was directed to appear before the Executive Engineer with objections and evidence; the Executive Engineer was to pass a speaking and reasoned final order within four weeks; coercive action was stayed for seven weeks or until disposal of the objection, whichever was earlier; and if aggrieved by the final order, the petitioner was left to appeal under Section 127 of the Electricity Act, 2003. Default in appearance or in filing the objection would revive the recovery citation and vacate the stay. ¶ 1

### PRINCIPLE TAGS

**alternative-remedy-relegation-section-127** The Court did not quash the recovery citation. It directed a speaking final order by the Executive Engineer and relegated any further challenge to the statutory appeal under Section 127 of the Electricity Act, 2003. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 29.11.2019 WAS ISSUED IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 OR WITHOUT OPPORTUNITY OF HEARING

The Court took a lenient view and directed appearance before the Executive Engineer without examining the alleged Supply Code breach or the validity of the citation. ¶ 1